

SOLVED PRACTICE WORKBOOK

Polity 22 - Special Provisions - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

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Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Special Provisions - Solved Practice Workbook

Exactly 32 original MCQs precede PYQs. Correct answers follow ABCD repeated eight times. Every option has a question-specific explanation and every MCQ has a unique Examiner trap.

BASIC MCQS / REMEDIATION

Original MCQs - exactly 32; key sequence ABCD repeated eight times

MCQ 1. Part XXI is best described as containing:

A. Temporary, transitional and special provisions B. Only emergency provisions C. Only inter-State trade rules D. Only Scheduled Area administration

Answer: A.

- **Option A - Correct:** Part XXI is formally titled Temporary, Transitional and Special Provisions.
- **Option B - Incorrect:** Article 352 emergency rules are in Part XVIII, not Part XXI.
- **Option C - Incorrect:** Inter-State trade is principally in Part XIII.
- **Option D - Incorrect:** Scheduled Areas are principally under Part X and Article 244.

Examiner trap 1: The word 'special' does not make Part XXI a catalogue of tribal areas alone.

MCQ 2. Under Article 371, the Governor's special responsibility arises through:

A. A State Cabinet resolution B. An order of the President C. A Supreme Court direction D. An automatic constitutional convention

Answer: B.

- **Option A - Incorrect:** A Cabinet may advise on administration but cannot create the Article 371 responsibility.
- **Option B - Correct:** Article 371(2) expressly authorises the President to provide for the responsibility by order.
- **Option C - Incorrect:** Courts review legality; they do not constitute Article 371 development boards.
- **Option D - Incorrect:** No convention can replace the required Presidential order.

Examiner trap 2: Do not convert an enabling Presidential power into an automatic gubernatorial power.

MCQ 3. Which is the complete Article 371 responsibility set?

A. Boards and police control B. Land shield and Assembly minimum C. Boards, annual reports, equitable development funds, training and State-service opportunity D. Autonomous councils and taxation

Answer: C.

- **Option A - Incorrect:** Police control is not part of Article 371's Maharashtra-Gujarat text.
- **Option B - Incorrect:** The land shield and Assembly minima belong to other lettered Articles.
- **Option C - Correct:** The clause links boards and annual reporting with equitable expenditure and adequate training/employment opportunity.
- **Option D - Incorrect:** Autonomous district councils arise under the Sixth Schedule, not Article 371.

Examiner trap 3: The annual Assembly report is an express component, not an optional good-governance suggestion.

MCQ 4. Article 371A's Assembly-resolution shield covers which set?

A. All Union List laws B. Only land transfer C. Only customary civil disputes D. Naga practices, customary law/procedure, customary justice, and land with resources

Answer: D.

- **Option A - Incorrect:** Nagaland has no general veto over all Union List legislation.
- **Option B - Incorrect:** Land and resources are one of four protected fields, not the entire shield.
- **Option C - Incorrect:** The justice field includes civil and criminal justice involving customary-law decisions.
- **Option D - Correct:** All four enumerated fields are required for the complete statement.

Examiner trap 4: The justice limb is qualified by decisions according to Naga customary law.

MCQ 5. Which phrase uniquely distinguishes Article 371A's land limb from Article 371G?

A. Land and its resources B. Land revenue administration C. Agricultural tenancy only D. Forest administration only

Answer: A.

- **Option A - Correct:** Article 371A expressly says ownership and transfer of land and its resources.
- **Option B - Incorrect:** The clause is not framed as a land-revenue power.
- **Option C - Incorrect:** Its protection is not confined to agricultural tenancy.
- **Option D - Incorrect:** Forest administration is not the constitutional wording of the fourth limb.

Examiner trap 5: Do not silently import the words 'and its resources' into Article 371G.

MCQ 6. For Article 371A's conditional law-and-order responsibility, the Governor:

A. Acts without consulting anyone B. Consults the Council of Ministers, then exercises individual judgment C. Requires a Nagaland Assembly resolution for every action D. Acts only on a Supreme Court reference

Answer: B.

- **Option A - Incorrect:** The text expressly requires ministerial consultation.
- **Option B - Correct:** This option reproduces the specified consultation-plus-individual-judgment structure.
- **Option C - Incorrect:** Assembly resolution controls the four-field Parliamentary-law shield, not each law-and-order act.
- **Option D - Incorrect:** No judicial reference is a precondition in the clause.

Examiner trap 6: Express individual judgment is bounded by subject and consultation.

MCQ 7. The base constitutional period for the special Tuensang administration was:

A. Five years from 1957 B. Until Parliament repealed Article 371A C. Ten years from Nagaland's formation, extendable by notified action D. Permanent from 1 December 1963

Answer: C.

- **Option A - Incorrect:** The Constitution did not use a five-year period from Constituent Assembly dissolution.
- **Option B - Incorrect:** No Parliamentary repeal trigger defines clause (2).
- **Option C - Correct:** Article 371A(2) states ten years from State formation or a further notified period on recommendation.
- **Option D - Incorrect:** The base period was expressly time-bound, not automatically permanent.

Examiner trap 7: The ten-year base ran from 1 December 1963 to 30 November 1973.

MCQ 8. Article 371B primarily authorises:

A. A Governor's law-and-order discretion B. A land-resource consent shield C. A regional development board D. A committee within the Assam Legislative Assembly

Answer: D.

- **Option A - Incorrect:** The law-and-order discretion belongs to Articles 371A and 371H in their specified terms.
- **Option B - Incorrect:** The subject-specific shield belongs to Nagaland and Mizoram.
- **Option C - Incorrect:** Regional development boards belong to Articles 371 and 371J.
- **Option D - Correct:** The President may create an Assam Assembly committee containing specified tribal-area MLAs and others.

Examiner trap 8: The Assam committee is not a Sixth Schedule autonomous council.

MCQ 9. Who must report on Manipur's Hill Areas administration?

A. The Governor to the President annually or when required B. The Chief Minister to Parliament every six months C. The Hill Areas Committee to the Supreme Court D. The President to the Governor annually

Answer: A.

- **Option A - Correct:** Article 371C(2) specifies this Governor-to-President reporting channel.
- **Option B - Incorrect:** The Constitution contains no such six-month parliamentary report.
- **Option C - Incorrect:** The committee is not made answerable to the Supreme Court by Article 371C.
- **Option D - Incorrect:** The reporting direction is reversed in this option.

Examiner trap 9: Article 371C combines the report with possible Union directions to the State.

MCQ 10. The clearest distinction between Articles 371B and 371C is that:

A. Only 371B concerns an Assembly committee B. 371C adds Governor reporting/special responsibility and Union directions C. 371B creates autonomous legislative power D. 371C applies to Assam's Sixth Schedule areas

Answer: B.

- **Option A - Incorrect:** Both Articles concern committees inside State Assemblies.
- **Option B - Correct:** The Manipur clause adds the reporting, responsibility and direction architecture.
- **Option C - Incorrect:** Article 371B does not create an autonomous legislature.
- **Option D - Incorrect:** Article 371C applies to Presidentially declared Hill Areas in Manipur.

Examiner trap 10: Both use committees, but only Manipur's text adds the executive accountability chain.

MCQ 11. Article 371D principally seeks:

A. A common High Court B. A minimum Assembly size C. Equitable public-employment and educational opportunity across State regions D. A customary-law veto

Answer: C.

- **Option A - Incorrect:** High Court organisation is governed elsewhere in the Constitution.
- **Option B - Incorrect:** Assembly minima appear in Articles 371F, 371G, 371H and 371I.
- **Option C - Correct:** Clause (1) expressly identifies public employment and education.
- **Option D - Incorrect:** The consent shield belongs to Articles 371A and 371G.

Examiner trap 11: The aim is regional opportunity, implemented through detailed orders.

MCQ 12. Under Article 371D(2), local preference may be linked to:

A. Religion alone B. Language alone C. Property ownership alone D. Residence or study for the period specified in the Presidential order

Answer: D.

- **Option A - Incorrect:** Religion is not the Article 371D local-candidate criterion.
- **Option B - Incorrect:** Language may matter administratively but is not the specified preference trigger.
- **Option C - Incorrect:** Property ownership is not the constitutional criterion.
- **Option D - Correct:** The clause expressly allows residence-or-study periods to be specified.

Examiner trap 12: Do not replace the order-defined residence/study test with a generic domicile slogan.

MCQ 13. Section 97 of the Andhra Pradesh Reorganisation Act, 2014 did what?

A. Adapted Article 371D for Andhra Pradesh and Telangana B. Repealed Article 371D C. Moved Article 371D to Part III D. Inserted Article 371J

Answer: A.

- **Option A - Correct:** Section 97 changed the heading and relevant clauses for both successor States.
- **Option B - Incorrect:** The Article continues to operate.
- **Option C - Incorrect:** The provision remains in Part XXI.
- **Option D - Incorrect:** Article 371J came through the Ninety-eighth Amendment.

Examiner trap 13: Bifurcation adapted territorial application; it did not abolish the opportunity framework.

MCQ 14. Which statement correctly combines tribunal history?

A. The tribunal is constitutionally mandatory forever B. P. Sambamurthy invalidated clause (5); the tribunal was later abolished under clause (8) C. Every clause of Article 371D was struck down D. The tribunal currently replaces both High Courts

Answer: B.

- **Option A - Incorrect:** Clause (8) expressly permits abolition.
- **Option B - Correct:** The 1987 judgment and 2020 abolition are distinct, correctly sequenced events.
- **Option C - Incorrect:** Sambamurthy targeted clause (5), not the entire Article.
- **Option D - Incorrect:** No current tribunal displaces both constitutional High Courts.

Examiner trap 14: Judicial invalidation of executive veto and administrative abolition are different legal events.

MCQ 15. Article 371E:

A. Creates local cadres in Telangana B. Automatically establishes a university C. Enables Parliament by law to establish a University in Andhra Pradesh D. Creates the Andhra Pradesh Administrative Tribunal

Answer: C.

- **Option A - Incorrect:** Local cadres are an Article 371D order mechanism.
- **Option B - Incorrect:** The wording is enabling, not self-executing.
- **Option C - Correct:** This reproduces the Article's actor, vehicle and territorial scope.
- **Option D - Incorrect:** Tribunal authority was in Article 371D(3).

Examiner trap 15: Proximity to Article 371D does not make 371E a reservation clause.

MCQ 16. Which Sikkim sequence is correct?

A. 36th Amendment association; 35th Statehood B. 35th inserted Article 371F; 36th inserted Article 2A C. Both amendments merely changed Assembly size D. 35th created association; 36th created Statehood and Article 371F

Answer: D.

- **Option A - Incorrect:** The amendment functions are reversed.
- **Option B - Incorrect:** Article 371F came through the Thirty-sixth Amendment.
- **Option C - Incorrect:** The changes transformed constitutional status, not merely Assembly strength.
- **Option D - Correct:** This is the correct two-stage sequence.

Examiner trap 16: The old Tenth Schedule of 1974 is unrelated to today's anti-defection Schedule.

MCQ 17. Which is a continuing core feature of Article 371F?

A. Continuity of pre-existing laws until competent alteration B. A perpetual four-year Assembly term C. A general Sikkim veto over Parliamentary law D. A local-cadre order identical to Article 371D

Answer: A.

- **Option A - Correct:** Clause (k) continues existing laws subject to later competent change.
- **Option B - Incorrect:** Clause (c) addressed the transitional sitting Assembly and is historical.
- **Option C - Incorrect:** Article 371F contains no general Parliamentary-law veto.
- **Option D - Incorrect:** Its integration design differs from Article 371D.

Examiner trap 17: Separate continuing clauses from appointed-day transition clauses.

MCQ 18. Under Article 371F(g), the Governor's discretion is:

A. Controlled by the Sikkim High Court alone B. For peace and equitable advancement, subject to Presidential directions C. For every State subject without limit D. Dependent on an Assembly resolution

Answer: B.

- **Option A - Incorrect:** Judicial review remains possible, but the clause names Presidential directions.
- **Option B - Correct:** This option states the specified purpose and control.
- **Option C - Incorrect:** The responsibility is not a general parallel government.
- **Option D - Incorrect:** No Assembly-resolution trigger appears in clause (g).

Examiner trap 18: The Governor's role is purpose-specific and direction-bound.

MCQ 19. R.C. Poudyal is most safely used for which proposition?

A. All communal representation is valid B. Article 371F is beyond judicial review C. Historically tailored Sikkim representation was largely sustained in context D. Sikkim retained external sovereignty

Answer: C.

- **Option A - Incorrect:** The judgment does not validate all communal electorates.
- **Option B - Incorrect:** Special provisions remain reviewable.
- **Option C - Correct:** The majority's contextual approach supports this bounded statement.
- **Option D - Incorrect:** Statehood did not preserve external sovereignty.

Examiner trap 19: Use the holding contextually; do not turn historical accommodation into a universal exemption.

MCQ 20. Article 371G includes:

A. A Governor law-and-order responsibility B. A development board C. A minimum of thirty Assembly members D. A four-field shield, saved pre-commencement Central Acts, and minimum forty members

Answer: D.

- **Option A - Incorrect:** The express law-and-order role belongs to Article 371H, and conditionally 371A.
- **Option B - Incorrect:** Development boards belong to 371 and 371J.
- **Option C - Incorrect:** Mizoram's minimum is forty, not thirty.
- **Option D - Correct:** This captures both the shield, saving proviso and Assembly floor.

Examiner trap 20: The saving proviso is a key difference from an oversimplified Nagaland comparison.

MCQ 21. Article 371H's special responsibility concerns:

A. Law and order in Arunachal Pradesh B. Mizo customary law C. Goa Assembly elections D. Karnataka development allocation

Answer: A.

- **Option A - Correct:** The Governor's bounded responsibility is expressly for law and order.
- **Option B - Incorrect:** Mizo customary protection is Article 371G.
- **Option C - Incorrect:** Goa's Article 371I only fixes Assembly minimum.
- **Option D - Incorrect:** Karnataka development is Article 371J.

Examiner trap 21: The Governor must consult ministers before using individual judgment.

MCQ 22. Article 371I is correctly paired with:

A. Mizoram - forty-member minimum B. Goa - Assembly not less than thirty C. Sikkim - old-law adaptation D. Arunachal Pradesh - law and order

Answer: B.

- **Option A - Incorrect:** That is Article 371G.
- **Option B - Correct:** This is the complete core content of Article 371I.
- **Option C - Incorrect:** That is part of Article 371F.
- **Option D - Incorrect:** That is Article 371H.

Examiner trap 22: Do not inflate Article 371I beyond its narrow Assembly-size rule.

MCQ 23. Article 371J(2) authorises an order concerning:

A. A general veto over all Central laws B. Only annual budget reporting C. Regional educational seats and identified State-controlled posts D. Creation of a Sixth Schedule council

Answer: C.

- **Option A - Incorrect:** No such veto appears in Article 371J.
- **Option B - Incorrect:** Annual reporting is only one component of clause (1).
- **Option C - Correct:** Clause (2) expressly addresses proportionate seat and post reservation.
- **Option D - Incorrect:** The Sixth Schedule is a separate constitutional mechanism.

Examiner trap 23: Reservation details come through the order; the Constitution does not itself fix one quota.

MCQ 24. Which statement on Article 371J is correct?

A. It constitutionally fixes a 70 per cent quota B. It applies to all of Karnataka identically C. It uses only place of birth and forbids domicile D. It authorises proportionate reservation, leaving details to orders

Answer: D.

- **Option A - Incorrect:** No universal percentage appears in Article 371J.
- **Option B - Incorrect:** The special focus is the named region.
- **Option C - Incorrect:** The text permits belonging by birth or domicile.
- **Option D - Correct:** This captures the enabling constitutional design.

Examiner trap 24: Never import a current rule percentage into the constitutional text.

MCQ 25. Which chronology begins correctly?

A. 7th -> 13th -> 22nd -> 27th -> 32nd B. 13th -> 7th -> 32nd -> 22nd -> 27th C. 22nd -> 13th -> 7th -> 32nd -> 27th D. 32nd -> 27th -> 22nd -> 13th -> 7th

Answer: A.

- **Option A - Correct:** The sequence follows 1956, 1962, 1969, 1971 and 1973.
- **Option B - Incorrect:** This puts 1962 before 1956 and disrupts the later order.
- **Option C - Incorrect:** The first three amendments are reversed.
- **Option D - Incorrect:** This is descending, not ascending, chronology.

Examiner trap 25: Chronology questions often hide the 1956 substitution of Article 371.

MCQ 26. Articles 371-371J presently concern how many States?

A. Ten B. Twelve C. Fourteen D. All north-eastern States only

Answer: B.

- **Option A - Incorrect:** The list is longer than ten because Maharashtra, Gujarat, AP, Telangana, Sikkim, Goa and Karnataka join the NE States.
- **Option B - Correct:** The constitutional family concerns twelve States.
- **Option C - Incorrect:** No fourteen-State list exists in the Article family.
- **Option D - Incorrect:** Several covered States are outside the Northeast.

Examiner trap 26: Count States, not Article labels: 371D covers two States and 371 covers two.

MCQ 27. Which comparison of Articles 371A and 371G is exact?

A. Both include land and its resources B. Both have a Governor law-order clause C. Both have four-field shields; only 371A expressly adds resources D. Both save all future Central Acts automatically

Answer: C.

- **Option A - Incorrect:** Article 371G's land limb omits 'and its resources.'
- **Option B - Incorrect:** Article 371G has no matching Governor law-order clause.
- **Option C - Correct:** This captures the shared structure and textual difference.
- **Option D - Incorrect:** Future covered laws require the relevant Assembly resolution.

Examiner trap 27: Similarity is not identity; reproduce the resource and saving-proviso differences.

MCQ 28. Why is 'all Article 371 provisions grant autonomy' incorrect?

A. Because none are constitutional B. Because all are temporary C. Because only Parliament implements them D. Because mechanisms range from development duties to Assembly minima

Answer: D.

- **Option A - Incorrect:** They are constitutional provisions in Part XXI.
- **Option B - Incorrect:** Some contain historical transitions, but the family is not uniformly temporary.
- **Option C - Incorrect:** Actors include President, Governor, Parliament and State Assembly.
- **Option D - Correct:** The wide mechanism range defeats the blanket label.

Examiner trap 28: Classify the clause before describing its federal effect.

MCQ 29. The current legal status of Article 370 is best stated as:

A. Printed in the Constitution but rendered inoperative through the 2019 process B. Repealed by the Ninety-eighth Amendment C. Fully operative after the 2023 judgment D. Replaced by Article 371J

Answer: A.

- **Option A - Correct:** This distinguishes textual presence from present operability.
- **Option B - Incorrect:** The Ninety-eighth Amendment inserted Article 371J.
- **Option C - Incorrect:** The Court upheld the inoperative result.
- **Option D - Incorrect:** Article 371J concerns Karnataka.

Examiner trap 29: Use 'rendered inoperative,' not 'deleted from the Constitution.'

MCQ 30. Which sequence correctly distinguishes the 2019 instruments?

A. Reorganisation Act inserted Article 35A B. C.O.272 applied the Constitution; C.O.273 rendered Article 370 inoperative C. C.O.273 created Telangana D. C.O.272 was a constitutional amendment under Article 368

Answer: B.

- **Option A - Incorrect:** Article 35A came from the 1954 Order and ceased with its supersession.
- **Option B - Correct:** This states the separate principal effects of the two orders.
- **Option C - Incorrect:** Telangana was created under the 2014 reorganisation statute.
- **Option D - Incorrect:** C.O.272 was a Presidential order under the Article 370 framework.

Examiner trap 30: Do not merge Presidential orders, parliamentary resolutions and the reorganisation statute.

MCQ 31. Which is an accurate holding of *In re Article 370 (2023)*?

A. It imposed a fixed Statehood deadline B. It upheld every part of the Article 367 route C. It held Article 370 temporary and sustained C.O.273 while rejecting the substitution route to the stated extent D. It invalidated Ladakh's Union Territory status

Answer: C.

- **Option A - Incorrect:** The Court recorded an assurance, not a judicial Statehood deadline.
- **Option B - Incorrect:** The Article 367 substitution was held ultra vires to the stated extent.
- **Option C - Correct:** This captures both the main result and route qualification.
- **Option D - Incorrect:** The Court upheld Ladakh's creation.

Examiner trap 31: Result-validating does not mean every intermediate reasoning device was valid.

MCQ 32. Which boundary statement is correct?

A. Article 371A is the Fifth Schedule B. Article 371B creates a Sixth Schedule council C. Article 371J belongs to special provisions for classes D. Part XXI State clauses, Fifth/Sixth Schedules and class protections have separate owners and mechanisms

Answer: D.

- **Option A - Incorrect:** Article 371A is a Part XXI State-specific clause.
- **Option B - Incorrect:** Article 371B creates an Assembly committee.
- **Option C - Incorrect:** Article 371J concerns Karnataka regional development and opportunity.
- **Option D - Correct:** This preserves location, ownership and legal-mechanism boundaries.

Examiner trap 32: Cross-link for comparison, but do not import Topic 26 or Topic 53 doctrine wholesale.

PYQS AND ANSWER PRACTICE

Verified PYQ 1 - UPSC CSE Mains 2025, GS Paper II, Question 4

Official-paper wording: Discuss the nature of Jammu and Kashmir Legislative Assembly after the Jammu and Kashmir Reorganization Act, 2019. Briefly describe the powers and functions of the Assembly of the Union Territory of Jammu and Kashmir. **10 marks | 150 words | Primary owner: Topic 25; bounded direct application here**

Model answer: The post-2019 Jammu and Kashmir Assembly is the elected legislature of a Union Territory, not of a State. The Jammu and Kashmir Reorganisation Act, 2019 created J&K with a legislature and Ladakh without one. Subject to the Act, the Assembly can legislate for J&K on permitted State List and Concurrent List matters; public order and police remain excluded. It votes the budget and grants, authorises expenditure, debates policy and holds the Chief Minister-led Council of Ministers politically accountable.

Its authority is constitutionally weaker than a State legislature because Parliament retains overriding legislative competence and the Lieutenant Governor/Union framework has specified powers. Elections were held in September-October 2024. As of 7 September 2026, Statehood has not been restored. *In re Article 370* recorded the Union's assurance of restoration but imposed no judicial deadline. Thus, representative government has returned within a Union Territory structure, while full federal parity remains pending.

Verified PYQ 2 - UPSC CSE Prelims 2025, GS Paper I, Question 52

Consider the following pairs:

State	Description
I. Arunachal Pradesh	The capital is named after a fort, and the State has two National Parks
II. Nagaland	The State came into existence on the basis of a Constitutional Amendment Act
III. Tripura	Initially a Part 'C' State, it became a centrally administered territory with the reorganization of States in 1956 and later attained the status of a full-fledged State

How many of the above pairs are correctly matched?

A. Only one B. Only two C. All the three D. None

Official UPSC Set-A answer: C.

- Pair I is accepted as correct: Itanagar is named after Ita Fort; Arunachal Pradesh has Namdapha and Mouling National Parks.
- Pair II is accepted as correct: Nagaland's Statehood settlement combined the State of Nagaland Act, 1962 with the Thirteenth Amendment, which inserted Article 371A and commenced with State formation.
- Pair III is accepted as correct: Tripura moved from Part C/central administration to Union Territory status and later Statehood.

Official-key discipline: The printed answer follows the locally verified final UPSC key. No answer letter is inferred for any unavailable objective key.

Six original Mains questions with model answers

Original Mains 1 - 10 marks, maximum 150 words

Question: Explain why Articles 371-371J should be understood as asymmetric federal arrangements rather than identical autonomy grants.

Model answer

India's Constitution uses asymmetry to fit different historical and developmental problems within one Union. Articles 371-371J therefore do not confer a common package. Article 371 and 371J pursue regional development; 371A and 371G require State-Assembly resolution before Parliamentary laws apply in specified customary and land fields; 371B and 371C create legislative committee mechanisms; 371D structures local public-employment and educational opportunity; 371F manages Sikkim's integration; 371H creates bounded gubernatorial responsibility; and 371I fixes Goa's Assembly minimum.

This variation matters analytically. Each clause identifies a protected interest, constitutional actor and instrument. The provisions can strengthen integration by recognising difference without conceding separate sovereignty. Yet legitimacy depends on narrow construction, transparent implementation and judicial review. Thus, Article 371 arrangements are best seen as purpose-specific federal accommodations, not interchangeable grants of autonomy.

Original Mains 2 - 10 marks, maximum 150 words

Question: Differentiate Articles 371A and 371G with reference to their protected fields and additional safeguards.

Model answer

Articles 371A and 371G both prevent automatic application of Parliamentary laws in four fields unless the respective State Assembly resolves otherwise: religious or social practices, customary law and procedure, administration of civil and criminal justice involving customary-law decisions, and land ownership/transfer.

Their texts differ. Article 371A for Nagaland expressly includes land 'and its resources.' It also contains a conditional Governor law-and-order responsibility, protection of earmarked Union grants and historically bounded Tuensang arrangements. Article 371G for Mizoram omits the resource phrase, saves Central Acts already in force immediately before its commencement, and fixes the Assembly at not less than forty members.

Hence both are consent shields, but neither is a general veto over Parliament. Exact subject wording, additional clauses and historical boundaries must control the comparison.

Original Mains 3 - 15 marks, maximum 250 words

Question: Examine Article 371D as a mechanism of regional equality after the bifurcation of Andhra Pradesh.

Model answer

Article 371D translates regional equality into an administrable constitutional mechanism. Clause (1), adapted by section 97 of the Andhra Pradesh Reorganisation Act, 2014, permits State-specific Presidential orders for equitable public-employment and educational opportunities in Andhra Pradesh and Telangana. Clause (2) authorises local cadres, local areas and residence-or-study-based preference or reservation.

Post-bifurcation implementation is separate. Telangana's G.S.R. 820(E) of 29 August 2018 superseded the 1975 order for Telangana and organised district, zonal and multi-zonal cadres. Andhra Pradesh's S.O. 5777(E) of 15 December 2025, republished on 20 April 2026, now supplies its own cadre structure. These orders show that Article 371D survives as a differentiated opportunity framework.

Its tribunal history must not be confused with that framework. P. Sambamurthy invalidated clause (5)'s executive power over tribunal decisions for violating rule of law; the tribunal was later abolished under clause (8) in 2020.

Article 371D can correct territorial disadvantage, but fragmented cadres may affect mobility and administrative flexibility. Transparent local-candidate rules, current schedules, grievance redress and outcome audits are therefore essential.

Original Mains 4 - 15 marks, maximum 250 words

Question: Analyse Article 371F as a constitutional instrument of Sikkim's integration.

Model answer

Article 371F is a constitutional integration code rather than a single privilege. The Thirty-fifth Amendment, 1974 first created an associate-State arrangement through Article 2A and the former Tenth Schedule. The Thirty-sixth Amendment, 1975 replaced it with full Statehood and inserted Article 371F.

The provision combined representation, continuity and executive safeguards. It fixed a thirty-member Assembly minimum and empowered Parliament to protect different sections of Sikkim's population through seats and constituency design. It continued the existing High Court, courts, authorities, property and laws, thereby preventing an institutional vacuum. The Governor received special responsibility for peace and equitable social-economic advancement, acting in discretion subject to Presidential directions. The President received a two-year power to adapt old laws and a continuing power to extend other State enactments with modifications.

In R.C. Poudyal, the Supreme Court largely sustained historically tailored representation in the context of integration. This supports accommodation but not blanket immunity from equality review.

Article 371F thus joined full membership of the Union with transitional continuity. Its historical clauses should not be misrepresented as current routine powers, and its exceptional design remains bounded by constitutional purpose and review.

Original Mains 5 - 20 marks, maximum 250 words

Question: Critically evaluate whether State-specific special provisions strengthen Indian federalism.

Model answer

State-specific provisions strengthen federalism when they transform diversity and disadvantage into enforceable constitutional accommodation. Articles 371A and 371G protect customary institutions and land through Assembly consent. Articles 371 and 371J address intra-State regional imbalance through boards, reports, funds and opportunity. Articles 371B and 371C institutionalise tribal or hill-area voice. Article 371D distributes public employment and educational access; Article 371F secured continuity during Sikkim's integration.

These mechanisms can reduce alienation, preserve negotiated settlements and produce substantive equality. They also demonstrate that equal Statehood need not require identical rules. R.C. Poudyal illustrates judicial willingness to consider historical context.

However, asymmetry creates risks. Vague claims of gubernatorial discretion may weaken responsible government. Local preferences may harden insider-outsider divisions or benefit local elites. Dormant boards, unpublished reports and stale territorial criteria can turn constitutional promises into symbolism. P. Sambamurthy confirms that special design cannot destroy effective judicial review or rule of law.

Reform should therefore focus on published orders, annual legislative reports, outcome indicators, transparent eligibility certificates, grievance mechanisms and protection of minorities within protected regions. Periodic review should test implementation without unilaterally erasing negotiated guarantees.

Thus, asymmetry is neither a constitutional defect nor an automatic success. It strengthens federalism when purpose-specific difference remains democratic, evidence-based and reviewable.

Original Mains 6 - 20 marks, maximum 250 words

Question: Critically examine the post-2019 constitutional position of Article 370 in light of In re Article 370 (2023).

Model answer

The post-2019 position must distinguish textual presence, legal operability and territorial reorganisation. C.O. 272 of 5 August 2019 applied the Constitution comprehensively to Jammu and Kashmir and superseded the 1954 Order, ending Article 35A's operative basis. C.O. 273 of 6 August made Article 370 inoperative except for the substituted clause (1). The Reorganisation Act, effective 31 October 2019, created J&K as a Union Territory with a legislature and Ladakh without one.

In re Article 370 (2023) held that Article 370 was temporary, that J&K retained no separate internal sovereignty, and that presidential power under Article 370(3) survived dissolution of the J&K Constituent Assembly. The Court held the Article 367 substitution in paragraph 2 of C.O. 272 ultra vires to the stated extent, yet sustained comprehensive constitutional application and upheld C.O. 273 through Article 370's valid powers.

The judgment upheld Ladakh's creation. It did not finally decide J&K's conversion from State to Union Territory after recording the Union's assurance of Statehood restoration. Elections occurred in 2024, but as of 7 September 2026 Statehood remains pending.

Therefore, the Article 370 operability issue is legally settled, while the federal status question remains politically and constitutionally unfinished.